THE STATE

AND

TAFIREI NDLOVU

IN THE HIGH COURT OF ZIMBABWE
NDUNA J with Assessors Mr O. Dewa and Mr Mbizo
BULAWAYO 7 JULY 2025

Criminal Trial

Mr K Jaravaza for the state
Mr B Ncube for the accused

NDUNA J: On various dates prior to 13 April 2022 the accused had been in communication with the first and only state witness over the issue concerning the pair's children. These two had been married and had separated. Therefore, on 13 April 2022, the accused travelled from Botswana to Zimbabwe to have the issues concerning the children resolved. The accused sought the company of his friend to pay the visit. They travelled and arrived at the homestead of the deceased who are parent and step parent of the state witness during the very beginning of the day; they arrived at around 0100 hours of 14th April 2022.

Whilst there, there was some developments which took place. The parents of the witness were sleeping outside as it was very hot. They were then attacked and were both killed. They were thrown into one of their huts and it was put on fire. The witness, the children and the accused took flight. They were joined by the second accused who was not tried in this case. They accordingly escaped to Botswana. Whilst in Botswana, the witness alerted the police officers of the offence. She alleged that the accused had murdered her parents in Zimbabwe. Accused was arrested and taken into custody. The second accused was arrested and was also taken into custody. The accused alone was deported back to Zimbabwe to stand trial over the deaths of the state witness' parents.

It is for the above that the accused faces two counts of murder in respect of the death of the said parents. He pleaded not guilty to the two charges. The state led evidence from a single witness and caused the remaining evidence to be admitted in terms of *section 314 of the Criminal Procedure & Evidence Act [Chapter 9:07]*. However, it is

important to then state that the evidence so admitted does not help to resolve the question of accused's guilty; or innocence. Therefore, this is a strictly single witness' case.

For the avoidance of doubt, it is lawful to deal with the case on such evidence. *Section 269 of the Code* enables the sufficiency of the single witness' evidence in criminal trials. It provides as follows: -

> ***269 Sufficiency of one witness in criminal cases, except perjury and treason***
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> *It shall be lawful for the court by which any person prosecuted for any offence is tried to convict such person of any offence alleged against him in the indictment, summons or charge under trial on the single evidence of any competent and credible witness:*
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> *Provided that it shall not be competent for any court—*
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> *(a) to convict any person of perjury on the evidence of any one witness as to the falsity of any statement made by the accused unless, in addition to and independently of the testimony of such witness, some other competent and credible evidence as to the falsity of such statement is given to such court;*
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> *(b) to convict any person of treason, except upon the evidence of two witnesses where one overt act is charged in the indictment or, where two or more such overt acts are so charged, upon the evidence of one witness to each such overt act;*
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> *(c) to convict any person on the single evidence of any witness of an offence in respect of which provision to the contrary is made by any enactment*.

Whilst it is possible to be convicted on the evidence of a single witness, the evidence must be reliable. In *R v Mokoena 1956 (3) SA 81 (A) at 85-86* it was laid down that the uncorroborated evidence of a single witness should only be relied upon if the evidence was clear and satisfactory in every material respect. Slight imperfections would not rule out reliance on that evidence but material imperfections would. The court stated that single witness evidence should not be relied upon where, for example, the witness had an interest adverse to the accused, has made a previous inconsistent statement, has given contradictory evidence or had no proper opportunity for observation. However, in the

latter case of *S v Sauls & Ors 1981 (3) SA 172 (A)* the Appellate Division stated that there was no rule of thumb to be applied when deciding upon the credibility of single witness testimony. The court must simply weigh his evidence and consider its merits and demerits. It must then decide whether it is satisfied that it is truthful, despite any shortcomings, defects or contradictions in that testimony. The approach was followed in the case of *Nyabvure S-23-88*. See also *Worswick v State S-27-88*, and *S v Corbett 1990(1) ZLR 205 (S).*

BECK JA in his article in *1986 Vol 1 No 1 Prosecutors Bulletin at p* 18 says that in assessing the quality of the single witness' evidence, to decide whether the accused should be convicted on the basis of this evidence, the court should be most attentive to the nature of the witness, looking at his apparent character, his intelligence, his capacity for observation, his powers of recall, his objectivity and things like that. The evidence should be carefully weighed against the objective probabilities of the case, and against all the other evidence which is at variance with it. The court must have rational grounds to conclude that the evidence of the single witness is reliable and trustworthy and is a safe basis for convicting the accused.

In the case before the court, the only witness had retired to bed when she woke up to some commotion going on between her parents and persons who were attacking them. She woke up and as she tried to exit from the hut in which she was sleeping she met the accused. What is clear from her testimony is that it does not sit well with the claims made by accused that the accused had slept in the hut as well. He claimed he had taken his ARV tablets. And he was adversely affected by them as he had taken them on empty stomach. Therefore, a decision has to be made on the progress and sequence of events; were they as told by the accused or as told by the state witness.

It must be noted that the accused would want the court to believe that the attack at the homestead was done by unknown persons. What makes this explanation patently false is the fact that the accused, his friend, his wife and children were all not attacked. They fled to Botswana and forgot about the deceased. This conduct was not explained by the accused.

In *S v Nduna & Anor HB-48-03* it was held that where a conviction relies on the evidence of a single witness, discrepancies in the witness's evidence are not necessarily

fatal. The discrepancies must be of such magnitude and value that it goes to the root of the matter to such an extent that their presence would no doubt give a different complexion of the matter altogether. Having regard to the evidence of the state witness, we find it very reliable and given by a trust worthy individual. She gave her evidence very well and in its chronological order. She did not fumble. The attack made on her for failing to report the accused to ordinary members of the community is not proper. She got a chance when the policeman in Botswana appeared.

The holding of the Court in *S v Banana 2001 (1) ZLR 607 (S)* is instructive where it remarked as follows:

> "Where the evidence of the single witness is corroborated in any way which tends to indicate that the whole story was not concocted, the caution enjoined may be overcome and acceptance facilitated. But corroboration is not essential. Any other feature which increases the confidence of the court in the reliability of the single witness may also overcome the caution."

The evidence of the single witness has not been seriously disputed. The story which is given by the accused is very incoherent. He states that he went inside the house to sleep since he had been weakened by the ARV's he had taken. However, he managed to walk to the bus stop without any complaints. This is contrary to his assertion that he had his body weakened by the ARV's he had taken. If the accused had been innocently at the homestead in question, he could have been attacked at least once by the attackers. He does not talk of any attack against his friend; even once. The story given by the accused is patently false. The accused does not give a reason for not having reported the attack in Zimbabwe and to Zimbabwean authorities. It cannot be accepted as a true story. This is contrary to what can be seen in the state witness' evidence. The evidence clearly paints a picture of violence by the accused and his friend against the parents of the witness. There could have been no reason why this witness would lie. Clearly her testimony gives a true reflexion of the events of the day. She saw a policeman and managed to launch her report with him. The court accept her evidence as a true story of the events under consideration.

It has been proved that the accused and his colleague for reasons best known to the two, murdered the deceased persons. We cannot accept his figment of imagination and

accept that unrelated person attacked and killed the deceased. The accused is accordingly found guilty as charged of the two counts of murder with actual intent.

Reasons for Sentence

The accused is a first offender. He pleaded not guilty to the two offences in which he exterminated the entire family. The two deceased were husband and wife and were brutally murdered. We are not told as to why they faced their death. They were killed and burnt. The accused simply came into the home and attacked the sleeping parents.

The following are listed as aggravation and are present in this case; premeditation. It is clear this was planned murders. Where the murder was committed by a person, group of persons or syndicate acting in the execution or furtherance of a common purpose or conspiracy is also aggravation which is present in the matter. We did not loose sight of the fact that there are two people who were murdered in this case.

In imposing sentence, the court shall deal with the two murders separately. It is well established in these courts, and reflects the accumulated wisdom of many generations, that sentence should fit the criminal as well as the crime, be fair to the state and to the accused, and be blended with a measure of mercy where ever that is possible. It must also reflect the interests of society. In addition to what we have stated above, a sentence also has five important functions:

1. It must act as a general deterrent. In other words, it must deter others of the community from committing such acts, or thinking that the price for wrongdoing is worthwhile.

2. It must act as a specific deterrent, in other words, it must deter this particular individual from being tempted to act in such a manner ever again.

3. It must enable the possibility of correction, unless this is very clearly not likely.

4. It must be protective of society. In other words, society must be protected from those who do it harm.

5. It must serve society's desire for retribution. In other words, society's outrage at serious wrongdoing must be placated.

Clearly in this case a lengthy period of imprisonment is warranted in order to serve each of these five functions. I have no doubt that the community as a whole, cries out aloud for a lengthy and severe sentence in a case such as this. The home was shut down as the mother and father were needlessly killed.

The process of sentencing a person convicted of an offence of murder commences, it seems to me, with an enquiry that is potentially twofold:

1. Would it be offensive to justice for the accused to receive a sentence of life imprisonment? If not, such a sentence should be imposed.

2. If the answer to this question is affirmative, a lesser but nevertheless appropriate sentence must be imposed.

The accused clearly planned this offence. The cause of the offence is a love affair which had been terminated between the accused and his wife. One does not see why then the two deceased persons were killed. Further, it is clear that the state witness was kidnapped and roped into silence. The conduct of the accused is extremely deplorable to state the least. One cannot exterminate the entire family on issues which could have been discussed and resolved.

It is our view that life imprisonment is the only appropriate option in this case.

There are two counts upon which the accused has been convicted. It therefore becomes apposite that the court has to decide on the manner of sentencing which is most appropriate; the court can impose a sentence on the two counts combined or can treat them separately for sentence.

In *S v Chawasarira 1991 (1) ZLR 66 (H)* at 69E the court noted the following;

> The power to impose a globular sentence is given, but only in appropriate circumstances, and then only if the sentencing court, in the exercise of its unfettered discretion, considers it necessary to do so. The sentencing court has a choice based on principle. The two choices were spelt out in S v Razaro 1979 RLR 353 (G) at 354E by Beadle AJ in these terms:
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> > One approach is to treat each individual count on its merits and sentence the accused on that count as if it was the only count. If, as a result of

> this, the aggregate sentence on all the counts taken together is too severe, as in many circumstances it very well might be, the appropriate approach is to make the sentences on some counts run concurrently with others, so that the effective sentence which the accused actually serves on all counts is appropriate. An alternative approach is to treat all the counts together as one for sentence and then impose a sentence which the judicial officer considers appropriate. This sentence should in the result be the same as a sentence which would have been imposed had the counts been treated separately and some made to run concurrently with each other.

It is the considered view that each count must be treated separately and then thereafter when it is appropriate the sentence may be ordered to run together. In *S vs Mudzingwa 1999 (2) ZLR 225 (HC)*, the court held that the default position is to treat each count on its own for purposes of sentence, and according to the status of the offending, these may be combined together. It is on that basis that the court deemed it necessary to treat the sentences separately and impose a sentence of life imprisonment for each of the two counts.

Count 1

Life imprisonment

Count 2

Life imprisonment

THE NATIONAL PROSECUTING AUTHORITY, state's legal practitioners
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